



Order under Section 21.2 of the Statutory Powers Procedure Act and the Residential Tenancies Act, 2006

Citation: LIN v EHSANI-ARMAKI, 2025 ONLTB 97506

Date: 2025-12-18 **File Number:**
LTB-T-056311-22-RV2

In the matter of: 3386 BAYVIEW AVENUE TORONTO
ON M2M3S3

Between: TIEN-CHANG LIN Tenant
MICHELLE ANN KWON

And

ABOOHAMID EHSANI-ARMAKI Landlord

And

ORI YUVAL Purchaser Landlord
SNY INVESTMENT CORP.

Review Order

TIEN-CHANG LIN and MICHELLE ANN KWON (the 'Tenant') applied for an order determining that ABOOHAMID EHSANI-ARMAKI (the 'Landlord') gave a notice of termination in bad faith.

This application was ultimately resolved by order LTB-T-056311-22-RV issued on November 10, 2025.

On December 8, 2025, the Landlord requested a review of the order.

A preliminary review of the review request was completed without a hearing. In determining this request, I reviewed the materials in the LTB's file as well as the audio recording for this hearing.

Determinations:

1. The Landlord alleges that the order contains serious errors.
2. The Landlord makes a series of arguments alleging reasonable apprehension of bias. I have reviewed the order and listened to the hearing recording and find these arguments

to be wholly without merit. The Member conducted the hearing in an exemplary manner and gave all parties a full and fair opportunity to be heard. In addition, the Landlord did not raise the issue of bias at the hearing and cannot now do so on review. For these reasons, the request to review on these grounds is denied.

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3. The Landlord also alleges that the order contains a serious error because it did not apply section 18 of the Act to transfer all liability to the purchasing Landlord. I am not persuaded that there is an error in this regard. In *Elkins v. Van Wissen* 2023 ONCA 789, the Court of Appeal directs the Board to apportion liability between vending and purchasing landlords in tenant applications regarding allegations of bad faith in the context of purchaser's own use notices.
4. As a result, on the basis of the submissions made in the request, I am not satisfied that there is a serious error in the order or that a serious error occurred in the proceedings or that the Landlord was not reasonably able to participate in the proceeding.

It is ordered that:

1. The request to review order LTB-T-056311-22 issued on November 10, 2025 is denied.
The order is confirmed and remains unchanged.

December 18, 2025

Date Issued

Richard Ferriss

Member, Landlord and Tenant Board

15 Grosvenor Street, Ground Floor
Toronto ON M7A 2G6

If you have any questions about this order, call 416-645-8080 or toll free at 1-888-332-3234.

